

21.05

Advance credit not permitted

With the exception of the classes of employees and circumstances described in sub-section 21.051, sick leave shall not be allowed in advance of being earned. If an employee has insufficient sick leave credits to cover a period of absence, no allowance for sick leave shall be granted in advance or in anticipation of future sick leave credits. In such cases, payroll deduction for the time lost shall be made for the period during which absence occurred, provided however, that earned vacation leave may be used for this purpose if the employee so elects.

21.051

Advanced use of sick leave by non-represented employees and DC47 represented employees

With the approval of the appointing authority, non-represented and DC47 represented employees shall be permitted to borrow, in advance of earning, up to five paid sick leave days after the employee has exhausted all accrued leave for the following circumstances:

- A. maternity-related absences as described in Regulation 21.15;
- B. to care for a dependent relative who is in need of care for a serious health condition as defined in Regulation 21.15;
- C. a serious health condition that makes the employee unable to perform the essential functions of his or her job;
- D. any qualifying exigency arising out of the fact that the employee's spouse, life partner (as defined in the Philadelphia code), child or parent is a covered military service member on covered active duty;
- E. to care for a covered military service member with a serious illness or injury if the eligible employee is the service member's spouse, life partner (as defined in the Philadelphia code), child, parent or next of kin (Military Caregiver Leave).

Any sick leave taken under this section shall be concurrent with, and not in addition to, leave allowable per FMLA and Military Caregiver Leave.

Any subsequently accrued leave shall first be used to reimburse the City for the advance, before it is used for additional time off. Upon separation, the employee must repay to the City any unreimbursed advance leave.